

STCV STCV

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-21

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Case Number: STCV Hearing Date: July 21, 2026 Dept: 731

[TENTATIVE] ORDER RE: PLAINTIFF MICHAEL BRIAN SMITH'S MOTION TO SET ASIDE/VACATE JUDGMENT [CRS #8855] Dept. 731 8:30 a.m. July 21, 2026

Moving Party: Plaintiff, Michael Brian Smith

Opposing Party: Defendant, Michael Kors Inc.

Notice: OK

Plaintiff Michael B. Smith brought this suit against his former employer, Defendant Michael Kors Inc., alleging race discrimination in his employment and a subsequent unlawful layoff.

On March 26, 2026, the Court granted a motion for judgment on the pleadings filed by Defendant, which disposed of the then-operative March 19, 2024, Second Amended Complaint ("SAC"). Plaintiff filed a motion for reconsideration on March 30, 2026, which was opposed by Defendant, and was ultimately denied by the Court on May 20, 2026. The Court entered judgment in Defendant's favor that same day.

Now before the Court is Plaintiff's motion to set aside/vacate the May 20, 2026, judgment on the grounds that another action affecting the outcome of the proceedings before this Court is purportedly presently pending before the Compton, California branch of the Los Angeles Superior Court as 22CMCV00753, Smith v. Michael Kors Inc. (the "Santa Monica action"). (See Motion, p. 2, ¶ 4.)

The motion is DENIED, with prejudice.

Plaintiff's motion is noticed as being premised on Code of Civil Procedure sections 473, subdivision (d), and 1008, subdivisions (a), (b), and (e). (Motion, pp. 1-2.) Both premises fail.

As argued in Defendant's opposition, there is no applicable provision of Code of Civil Procedure section 473, subdivision (d), here. (See Opposition pp. 11-12.) Plaintiff is asking that the Court vacate a final judgment based on the purported pendency of the Santa Monica action. This is not a valid ground for relief under section 473, subdivision (d), which is limited to clerical errors and void judgments and orders, including those voided by extrinsic fraud or mistake, neither of which Plaintiff's paper show. (See *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29 [discussing § 473, subd. (d)].)

Similarly, none of the grounds for party-requested reconsideration—new or different facts, circumstances, or law (Code Civ. Proc., § 1008, subd. (a))—appear here, as the requested relief is based on the purported pendency of the Santa Monica action rather than some fact, circumstance, or new law relating to this action.

Last, the Court takes judicial notice of Exhibit A attached to Defendant's opposition, which shows a June 18, 2026, minute order for the Santa Monica action, in which the court in that case denied a similar motion by Plaintiff in this case to vacate or set aside the judgment in that case, which was entered on November 6, 2025. (Opposition, Request for Judicial Notice, Ex. A, pp. 6-7.)

Plaintiff's motion is accordingly DENIED. No further motions seeking identical relief shall be entertained absent a proper statutory basis.

Plaintiff Michael B. Smith is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's

email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 21, 2026 _____

MARK C. KIM

Judge of the Superior Court